

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
July 2, 2026
8:30 a.m./1:30 p.m.

4. SARA KLINKENBORG V. CHRISTOPHER NELSON

24FL1262

On March 27, 2026, Petitioner filed a Request for Order (RFO) seeking to compel discovery responses, sanctions, and additional orders as set forth on her FL-316. All required documents were served on May 6th.

Respondent has not filed a Responsive Declaration to Request for Order. Where a party fails to timely file opposition papers the court, in its discretion, may treat said failure “as an admission that the motion or other application is meritorious.” El Dorado County, Local Rule 7.10.02(C). Here, the RFO was timely and properly served on Respondent. He was aware of the requests being made and chose not to file an opposition. As such, the court finds good cause to treat his failure to do so as an admission that the claims made in the RFO are meritorious.

Petitioner requests an order compelling Respondent’s preliminary and final declarations of disclosure, Form Interrogatory responses, Special Interrogatory responses, and responses to Requests for Production of Documents. She further requests attorney fees and sanctions in the amount of \$5,000 plus an additional \$1,000 in sanctions pursuant to Family Code § 271.

Disclosures

Family Code sections 2104 and 2105 impose on each party the obligation of making preliminary and final disclosures of assets within the specified timeframes. Where a party fails to comply with their disclosure requirements, the complying party may, among other things, file a motion to compel and seek sanctions against the noncomplying party. Fam. Code § 2107(b)(1).

Here, Petitioner has complied with the law and served her preliminary and final declarations of disclosure; as such she has standing to assert her demand for the same pursuant to Family Code Section 2107. Accordingly, Respondent is ordered to serve full and complete preliminary and final declarations of disclosure, with supporting documents, no later than July 16, 2026.

Discovery Responses

Petitioner served Requests for Production of Documents and Special Interrogatories on June 2, 2025 and Form Interrogatories on June 6, 2025. Responses were due July 7, 2025 and July 11, 2025, respectively.

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Generally speaking, responses to interrogatories are due within 30 days of the date of service. Cal. Civ. Pro. § 2030.260. If a party fails to provide timely responses, that party waives any right to object to the interrogatories, and waives the right to produce writings in response. Cal. Civ. Pro. §2030.290 (a).

In addition to interrogatories, the Civil Discovery Act authorizes all parties to request documents from the opposing party by way of a Request for Production of Documents. Cal. Civ. Pro. §2031.210. As with interrogatories, responses to requests for production are due within 30 days of the date of service, where a party fails to provide timely responses the party to whom the discovery was directed waives “any objection...including one based on privilege or on the protection of work product...” and “[t]he party making the demand may move for an order compelling response[s]...” Cal Civ. Pro. §2031.300(a).

Here, Petitioner has sufficiently established Respondent’s failure to comply with his discovery obligations. Petitioner has provided the court with copies of subject proofs of service of the subject discovery and she has attested to the fact that no responses have been received. As such, Petitioner’s Motion to Compel is granted. Respondent shall provide full and complete verified responses, without objections, to Family Law Form Interrogatories, Set One, Special Interrogatories, Set One and Requests for Production of Documents, Set One no later than July 16, 2026.

Sanctions

Where a party fails to comply with his or her disclosure obligations,“...the court *shall*...impose monetary sanctions against the noncomplying party. Sanctions shall be in an amount sufficient to deter repetition of the conduct or comparable conduct, and *shall* include reasonable attorney’s fees, costs incurred, or both, unless the court finds that the noncomplying party acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” Fam. Code § 2107(c).

In addition to sanctions under the Family Code, sanctions may also be awarded for a party’s “misuse of the discovery process.” Cal. Civ. Pro. § 2023.030. Conduct subject to discretionary discovery sanctions includes, but is not limited to, “[f]ailing to respond or submit to an authorized method of discovery.” Cal. Civ. Pro. § 2023.010(d).

Where sanctions are awarded, the amount imposed is to include “...the reasonable expenses, including attorney’s fees, incurred by anyone as a result of...” the conduct of the party subject to sanction. Cal. Civ. Pro. 2023.030(a). A party requesting sanctions must establish that the amount requested is reasonable, was incurred as a result of discovery

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abuse, and the requesting party must already be liable for those expenses before the court can award the costs as sanctions. See *Tucker v. Pacific Bell Mobile Servs.*, 186 Cal. App. 4th 1548 (2010) (anticipated costs for future deposition could not be included in award of sanctions). Notwithstanding the foregoing, the court is obligated to “...impose a one-thousand-dollar (\$1,000) sanction, payable to the requesting party...” if the court finds that the noncompliant party did not respond in good faith to a request for production of documents. Cal. Civ. Pro. § 2023.050(a).

Here, Respondent did not oppose the Motion to Compel, therefore, discovery sanctions are not mandatory. However, the court does find that Petitioner engaged in the misuse of the discovery process by failing to submit to authorized forms of discovery and he failed to make his preliminary and final disclosures as required. He provides no justification for his actions therefore, the court finds that the imposition of sanctions is warranted.

While there are grounds for sanctions, Petitioner has not provided documentation to establish the reasonableness of the amount requested or the relatedness of that amount to the misuse of the discovery process. Given that Respondent did not provide any responses at all the court finds that a discovery sanction of \$1,500 is reasonable pursuant to Civil Procedure Section 2023.030(a). The court awards an additional \$1,000 in sanctions for Respondent’s failure to respond to Requests for Production of Documents pursuant to Civil Procedure Section 2023.050.

Under Family Code § 2107, the court finds an additional \$1,000 to be reasonable given Respondent’s failure to make his disclosures and the additional time and effort that Petitioner’s counsel expended in attempting to obtain them.

In addition to the discovery and disclosure sanctions, Petitioner requests sanctions pursuant to Family Code § 271 which states, in pertinent part, “...the court may base an award of attorney’s fees and costs on the extent to which the conduct of each party or attorney furthers or frustrates the policy of the law to promote settlement of litigation and, where possible, to reduce the cost of litigation by encouraging cooperation of the parties and attorneys. An award of attorney’s fees and costs pursuant to this section is in the nature of a sanction.” Fam. Code § 271(a).

In reviewing the filings of Petitioner, it is apparent that the conduct of Respondent and his counsel has frustrated the policy of the law to promote settlement and decrease costs. The disclosure and discovery requirements of a party are well settled law and

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Respondent, nor his counsel, have made any effort to comply with them. Furthermore, it appears counsel for Respondent has also disregarded the clear notice and service requirements of ex partes. Accordingly, the court is awarding sanctions in the amount of \$2,000 pursuant to Family Code § 271.

The above listed sanctions amount to a total of \$5,500. Respondent is sanctioned \$3,000 to account for the sanctions awarded under Family Code § 271 and Family Code § 2107. His attorney is sanctioned the remaining \$2,500 pursuant to Civil Procedure § 2023.030(a) and § 2023.050. Payments are to be made directly to Petitioner's attorney. Payments may be made in one lump sum or in monthly increments of \$250 with the first payment no later than July 15, 2026 and continuing on the 15th of each month thereafter until paid in full. If any payment is missed or late, the entire amount shall become immediately due and payable.

Finally, Petitioner makes a request for evidentiary sanctions in the event Respondent does not comply with the court's orders. The court is not inclined to make this order as the issue is not yet ripe for decision. Plaintiff will need to bring another noticed motion in the future if called for.

Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #4: RESPONDENT IS ORDERED TO SERVE FULL AND COMPLETE PRELIMINARY AND FINAL DECLARATIONS OF DISCLOSURE, WITH SUPPORTING DOCUMENTS, NO LATER THAN JULY 16, 2026. PETITIONER'S MOTION TO COMPEL IS GRANTED. RESPONDENT SHALL PROVIDE FULL AND COMPLETE VERIFIED RESPONSES, WITHOUT OBJECTIONS, TO FAMILY LAW FORM INTERROGATORIES, SET ONE, SPECIAL INTERROGATORIES, SET ONE AND REQUESTS FOR PRODUCTION OF DOCUMENTS, SET ONE NO LATER THAN JULY 16, 2026.

THE COURT IS ORDERING DISCOVERY SANCTIONS IN THE AMOUNT OF \$1,500 IS PURSUANT TO CIVIL PROCEDURE SECTION 2023.030(A). THE COURT AWARDS AN ADDITIONAL \$1,000 IN SANCTIONS FOR RESPONDENT'S FAILURE TO RESPOND TO REQUESTS FOR PRODUCTION OF DOCUMENTS PURSUANT TO CIVIL PROCEDURE SECTION 2023.050. UNDER FAMILY CODE § 2107, THE COURT FINDS AN ADDITIONAL \$1,000 TO BE REASONABLE UNDER THE CIRCUMSTANCES. THE COURT IS AWARDING SANCTIONS IN THE AMOUNT OF \$2,000 PURSUANT TO FAMILY CODE § 271.

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THE ABOVE LISTED SANCTIONS AMOUNT TO A TOTAL OF \$5,500. RESPONDENT IS SANCTIONED \$3,000 TO ACCOUNT FOR THE SANCTIONS AWARDED UNDER FAMILY CODE § 271 AND FAMILY CODE § 2107. HIS ATTORNEY IS SANCTIONED THE REMAINING \$2,500 PURSUANT TO CIVIL PROCEDURE § 2023.030(A) AND § 2023.050. PAYMENTS ARE TO BE MADE DIRECTLY TO PETITIONER'S ATTORNEY. PAYMENTS MAY BE MADE IN ONE LUMP SUM OR IN MONTHLY INCREMENTS OF \$250 WITH THE FIRST PAYMENT NO LATER THAN JULY 15, 2026 AND CONTINUING ON THE 15TH OF EACH MONTH THEREAFTER UNTIL PAID IN FULL. IF ANY PAYMENT IS MISSED OR LATE, THE ENTIRE AMOUNT SHALL BECOME IMMEDIATELY DUE AND PAYABLE.

PETITIONER MAKES A REQUEST FOR EVIDENTIARY SANCTIONS IN THE EVENT RESPONDENT DOES NOT COMPLY WITH THE COURT'S ORDERS. THE COURT IS NOT INCLINED TO MAKE THIS ORDER AS THE ISSUE IS NOT YET RIPE FOR DECISION.

PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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5. DUNIA LANDAVERDE V. ANGEL LANDAVERDE

23FL0394

On April 20, 2026, Petitioner filed a Request for Order (RFO) seeking child support, spousal support, property control, and a set-aside of the court's prior orders. She filed her Income and Expense Declaration concurrently therewith. Both documents were served on June 2nd however Petitioner failed to serve the required blank FL-320 and Notice of Tentative Ruling.

Respondent filed his Responsive Declaration to Request for Order on June 10th. There is no Proof of Service for this document therefore the court has not read or considered it.

Petitioner is asking the court to set aside the orders made on March 26, 2026 and instead award her spousal and child support in accordance with her proposed Xspouse report. She further requests temporary exclusive use, possession and control of the 2017 Toyota Tacoma.

Civil Procedure Section 473(b) governs the circumstances in which a party may be relieved of the terms of a judgment, dismissal, order or other proceeding in instances of mistake, inadvertence or excusable neglect. Cal. Civ. Pro. § 473(b). The statute addresses instances in which relief is mandatory as well as circumstances giving rise to discretionary relief. While the mandatory provisions only apply to defaults and default judgments, the discretionary portion of the statute has a much broader application. See *Las Vegas Land & Development Co., LLC v. Wilkie Way, LLC*, 219 Cal. App. 4th 1086 (2013) (Mandatory provisions of Section 473(b) apply only to defaults).

Generally speaking, "...the discretionary relief provision of Section 473 only permits relief from attorney error 'fairly imputable to the client, i.e., mistakes anyone could have made.' [Citations]. 'Conduct falling below the professional standard of care, such as failure to timely object or to properly advance an argument, is not therefore excusable. To hold otherwise would be to eliminate the express statutory requirement of excusability and effectively eviscerate the concept of attorney malpractice.' [Citation]." *Zamora v. Clayborn Contracting Group, Inc.*, 28 Cal. 4th 249 (2002) *citing* *Garcia v. Hejmadi*, 58 Cal. App. 4th 674, 682 (1997). Numerous cases have found that an attorney's conduct falling below the professional standard of care is not grounds to vacate a resulting judgment under Section 473(b). See *Carroll v. Abbott Laboratories, Inc.*, 32 Cal. 3d 892 (1982) (conduct falling below the professional standard of care is generally considered inexcusable]; See *also* *Garcia v. Hejmadi*, 58 Cal. App. 4th 674, 682 (1997)["[t]he Legislature did not intend to eliminate